

STATE OF NEW YORK

8159--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to the disability retirement for safety and security officers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 607-a of the retirement and social security law, as
2 added by chapter 722 of the laws of 1996, subdivision b as amended by
3 chapter 322 of the laws of 2021, and subdivision c as added by chapter
4 653 of the laws of 1999, is amended to read as follows:

5 § 607-a. Performance of duty disability retirement. a. Any security
6 hospital treatment assistant, as that term is defined in subdivision i
7 of section eighty-nine of this chapter, or any qualifying member, as
8 such term is defined in paragraph one of subdivision a of section eight-
9 y-nine-t of this chapter, as amended by chapter four hundred seventy-six
10 of the laws of two thousand eighteen, who becomes physically or mentally
11 incapacitated for the performance of duties as the natural and proximate
12 result, of an injury, sustained in the performance or discharge of [~~his~~
13 ~~or her~~] their duties by, or as the natural and proximate result of, an
14 act of any person confined in an institution under the jurisdiction of
15 the office of mental health, or by any person who has been committed to
16 such institution by any court shall be paid a performance of duty disa-
17 bility retirement allowance equal to that which is provided in section
18 sixty-three of this chapter, subject to the provisions of section
19 sixty-four of this chapter.

20 b. Notwithstanding any provision of this chapter or of any general or
21 special law to the contrary, a member covered by this section who
22 contracts HIV (where there may have been an exposure to a bodily fluid
23 of an incarcerated individual or a person described in subdivision a of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11232-02-5

1 this section as a natural and proximate result of an act of any incar-
2 cerated individual or person described in such subdivision a that may
3 have involved transmission of a specified transmissible disease from an
4 incarcerated individual or such person described in such subdivision a
5 to the retirement system member), tuberculosis or hepatitis will be
6 presumed to have contracted such disease in the performance or discharge
7 of ~~[his or her]~~ their duties, and will be presumed to be disabled from
8 the performance of ~~[his or her]~~ their duties, unless the contrary be
9 proved by competent evidence.

10 c. Notwithstanding any provision of this chapter or of any general or
11 special law to the contrary, any condition of impairment of health
12 caused by diseases of the heart, resulting in disability or death to a
13 member covered by this section, presently employed and who shall have
14 sustained such disability while so employed, who successfully passed a
15 physical examination on entry into service as a security hospital treat-
16 ment assistant or a qualifying member as set forth in this section,
17 which examination failed to disclose evidence of any disease or other
18 impairment of the heart, shall be presumptive evidence that it was
19 incurred in the performance and discharge of duty, unless the contrary
20 be proved by competent evidence.

21 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow members of the New York State and Local Employees' Retirement System employed as safety officers to be eligible for a performance of duty (POD) disability benefit if they become disabled as a result of an injury inflicted by any person confined in an institution under the jurisdiction of the New York State Office of Mental Health. The benefit will be 75 percent of final average salary, less workers' compensation. Currently, these affected members do not have a POD disability benefit.

If this bill is enacted during the 2025 Legislative Session, we anticipate that there will be an increase of approximately \$1.1 million in the annual contributions of the State of New York for the fiscal year ending March 31, 2026. In future years this cost will vary but is expected to average 1.6% of salary annually.

In addition to the annual contributions discussed above, there will be an immediate past service cost of approximately \$5.55 million which will be borne by the State of New York as a one-time payment. This estimate assumes that payment will be made on March 1, 2026.

These estimated costs are based on 667 affected members employed by the State of New York, with annual salary of approximately \$52 million as of March 31, 2024.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated May 16, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-146. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.